

How to draft an Order**Instructions**

An *Order* is a document that sets out the decision made by a judge. Sometimes, a judge or Registry staff may ask that you or your lawyer write out an order for the Court. If the Court asks you to provide a draft Order, you can use this *Order template* to help you draft the Order.

If you and the other person have come to an agreement on all of your family law issues, you can do a *Consent Order*. You can use the *Consent Order* templates (*Forms F34.02A and F34.02B*) to draft the consent between you and the other person.

Completing Your Draft Order

You can fill out this form by hand or you can download and fill out this form electronically at <https://www.court.nl.ca/supreme/rules-practice-notes-and-forms/family/general/> (If you fill out the form electronically, you must still print the form and provide it to the Court).

Orders dealing with child, spousal, partner, parental, or dependant support, must be separated from other types of orders. If you are drafting a support order, fill out an *Order – Support (Template)*. For all other Orders (eg. parenting or property), fill out this *Order – Other than Support (Template)*.

Check off “Final Order” (on the first page) if you are drafting to a final order. Check off “Interim Order on Consent” (on the first page) if you are drafting an interim order.

You only need to attach the pages of this template that apply to you.

If you need more space to fill out any section of this form, attach an extra page and indicate which section is continued on the extra page.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Gander: (709) 256-1115

Grand Bank: (709) 832-1720

Grand Falls-Windsor: (709) 292-4260

Happy Valley-Goose Bay: (709) 896-7892

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE FILING THE ORDER ---

Order – Other than Support (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ ☐ APPLICANT
(Print full name) ☐ CO-APPLICANT

AND: _____ ☐ RESPONDENT
(Print full name) ☐ CO-APPLICANT

AND: _____ ☐ NOT APPLICABLE
(Print full name) ☐ SECOND APPLICANT
☐ SECOND RESPONDENT
☐ CO-APPLICANT

BEFORE the Honourable Justice _____, on _____
(Print Name) (Date: month/day/year)

☐ *Final Order*
☐ *Interim Order*

IT IS ORDERED THAT under the:

- ☐ *Family Law Act* (Newfoundland and Labrador):
- ☐ *Divorce Act* (Canada):
- ☐ *Children's Law Act* (Newfoundland and Labrador):
- ☐ _____

Parenting**Decision-Making**☐ **One parent makes all the decisions (Sole Decision-Making)**

It is ordered that _____
(Print name)

shall make all of the major decisions regarding the following children: (Name(s) and date(s) of birth of children)

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Other details (decision-making and information):

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OR

☐ **Both parents make the decisions together (Joint Decision-Making)**

It is ordered that _____
(Names of Co-Applicants or parties)

shall make all of the major decisions jointly for the following children: (Name(s) and dates(s) of birth of children)

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OR

☐ **Other (Qualified Joint Decision-Making)**

It is ordered that _____
(Names of Co-Applicants or parties)

shall make the decisions for the following children: (Name(s) and dates(s) of birth of children)

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as follows:

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Parenting Time

It is ordered that there shall be:

- ☐ Shared parenting. *(Fill in the details of your arrangement below)*
- ☐ Primary residence with (name) _____ and access arrangements. *(Fill in the details of your arrangement below)*
- ☐ Primary residence with (name) _____ and no access.
- ☐ Split parenting. *(Fill in the details of your arrangement below)*

Details:

Regular parenting schedule (daily, weekly, monthly or other):

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Parenting schedule for holidays and special occasions:

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Schedule for other contact (ie. phone, internet, etc.):

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Other important issues in relation to parenting the child(ren):

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Division of Property

It is ordered that there shall be:

- ☐ Equal division of matrimonial property. *(Fill in the details of your arrangement below)*
- ☐ Unequal division of matrimonial property. *(Fill in the details of your arrangement below)*
- ☐ Division of common law property. *(Fill in the details of your arrangement below)*
- ☐ Property arrangement. *(Fill in the details of your arrangement below)*

Details:

Other

If you are consenting to something other than the orders provided for in this Form, fill in the details below:

It is ordered that:

<i>Order Issued at:</i> <i>Location:</i> Supreme Court in _____, Newfoundland and Labrador <i>Date:</i> _____ _____ <i>Justice or Registry Clerk of the Supreme Court of Newfoundland and Labrador</i>	<i>FOR COURT USE ONLY</i>
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